

17 February 2020

Albany Park, Hertford Road

in the London Borough of Enfield

planning application no. 19/02738/RE4

Strategic planning application - combined stage I and stage II referral

Town & Country Planning Act 1990 (as amended); Greater London Authority Acts 1999 and 2007; Town & Country Planning (Mayor of London) Order 2008.

The proposal

A flood alleviation scheme comprising construction of a new watercourse, flood storage area, combined footpath-cycleway, security fencing, revised landscape and playing fields.

The applicant

The applicant is **Enfield Council**.

Key dates:

Combined Stage 1 & 2 referral: 4 February 2020

Council's committee meeting: 6 November 2019

Strategic issues summary:

Land use principle: The proposal for flood alleviation causes loss of some proportion (44%) of existing playing fields. However, the benefits of the proposed development to prevent future flooding in the area, improvements to biodiversity and landscaping of the Park outweigh the harm. Therefore, the proposal complies with Policies 5.12 and 5.13 of the London Plan and Policies SI.12 and SI.13 of the Mayor's Intend to Publish London Plan.

The Council's decision

In this instance, Enfield Council has resolved to grant permission, subject to conditions.

Recommendation

That Enfield Council be advised that the Mayor is content for it to determine the case itself, subject to any action that the Secretary of State may take, and does not therefore wish to direct refusal.

Context

1 On 6 November 2019, Enfield Council decided that it was minded to grant planning permission and on 4 February 2020 it advised the Mayor of this decision, and sent a (combined stage 1 and 2) referral notifying him of a planning application of potential strategic importance to develop the above site for the above uses.

2 The application was referred to the Mayor under the Category 3C of the Schedule to the Order 2008:

- **Category 3C:** "Development which is likely to prejudice the use as a playing field of more than 2 hectares of land which – (a) is used as a playing field at the time the relevant application for planning permission is made; or (b) has at any time in the five years before the making of the application been used as a playing field."

3 Under the provisions of Article 5 of the Town & Country Planning (Mayor of London) Order 2008 the Mayor may allow the draft decision to proceed unchanged, or direct Enfield Council under Article 6 to refuse the application. The Mayor has until 17 February 2020 to notify the Council of his decision and to issue any direction.

4 The Mayor of London's statement on this case will be made available on the GLA website www.london.gov.uk.

Site description

5 The application site is located within Albany Park which has an area of 13.3 hectares located in the northern part of Enfield, to the east of the A10. The whole of the park is within Metropolitan Open Land, and it is a designated Local Open Space with existing playing fields. The eastern half and portion of the site in the north are designated Flood Zone 2. As shown below, currently, the application site has 3 tennis courts, 9 football pitches, formal and informal playgrounds, and a Multi-Use-Games Area (MUGA).



The application site and the Albany Park River Restoration and Flood Alleviation scheme: Source: Applicant's planning application documentation.

Details of the proposal

6 The planning application seeks permission for a flood alleviation scheme comprising construction of a new watercourse, flood storage area, combined footpath-cycleway, security fencing, revised landscape and playing fields.

Case history

7 There is no case history relevant to the current planning application.

Strategic planning issues and relevant policies and guidance

8 For the purposes of Section 38(6) of the Planning and Compulsory Purchase Act 2004, the development plan in force for the area comprises the 2010 Enfield Core Strategy Development Plan and the 2016 London Plan (consolidated with Alterations since 2011).

9 The following are also relevant material considerations:

- The National Planning Policy Framework 2019 and National Planning Practice Guidance.
- The Mayor's Intend to Publish London Plan (December 2019).

10 The relevant issues and corresponding policies are as follows:

- | | |
|-----------------------------|---|
| • Playing fields/open space | <i>London Plan; Intend to Publish London Plan</i> |
| • Metropolitan Open Land | <i>London Plan; Intend to Publish London Plan;</i> |
| • Sustainable development | <i>London Plan; Intend to Publish London Plan;
Sustainable Design and Construction SPG;
Mayor's Environment Strategy;</i> |

Principle of development: flood alleviation and loss of playing fields

11 Flood risk management: The proposed flood alleviation scheme complies with London Plan Policy 5.12 and the Mayor's Intend to Publish London Plan Policy SI.12 'Flood risk management'. The surface water drainage strategy for the proposed development complies with London Plan Policy 5.13 and the Mayor's Intend to Publish London Plan Policy SI.13 'Sustainable drainage'. The proposal has been developed in collaboration with the Environment Agency and the Greater London Authority. Both organisations support the proposal and are providing funding to the scheme. High levels of vegetation and landscaping are proposed, which is welcomed. These measures would enhance biodiversity.

12 Loss of playing fields: Policy 7.18 of the London Plan and Policy S5 of the Mayor's Intend to Publish London Plan resist the loss of local protected open spaces including playing fields unless equivalent or better quality provision is made within the local catchment area. Replacement of one type of open space with another is unacceptable unless an up to date needs assessment demonstrates that this would be appropriate.

13 As shown below in the table and the corresponding scaled drawings, there would be a loss of (44%) of the existing playing fields, which is equivalent to an area of 2.94 hectares. Whilst this is regrettable and not in compliance with Policy 7.18 of the London Plan and Policy S5 of the Mayor's Intend to Publish, the benefits of the proposal which

include prevention of future flooding - reducing flood risk to over 200 local properties, improvements to biodiversity and enhanced landscaping of the Park outweigh the harm the development causes in terms of loss of part of the playing fields. Therefore, the proposal is supported.

14 Table of areas of existing, retained and lost playing fields:

Area of existing playing fields	67,490 sq.m.
Area of retained playing fields	38,110 sq.m.
Area of lost playing fields	29,380 sq.m.



The existing playing fields (left), to be retained (middle) and to be lost (right).

Conclusion

15 The proposed flood alleviation causes loss of part of the existing playing fields. However, the benefits of the proposed development outweigh the harm that would be caused. The proposal complies with Policies 5.12 and 5.13 of the London Plan and SI.12 and SI.13 of the Mayor's Intend to Publish London Plan, and it is supported.

GLA Funding

16 The Greater London Authority is providing a financial contribution of £346.000 towards the cost of the proposed works.

Transport

17 TfL considers there to be no outstanding strategic transport issues and note conditions to be implemented addressing construction management, cycle storage and electric vehicle charging points. TfL wish to be consulted on these prior to their discharge. It is acknowledged and welcomed that excavated material will remain on site, reducing the landscape works impact upon the surrounding highway network.

Response to consultation

18 Enfield Council publicised the application by sending consultation letters to 180 neighbouring properties, and issuing a site and press notice. The Council also advertised the application as a departure from the Development Plan.

Residents response

19 Most of the residents who responded were supportive of the development and raised no objection to the scheme subject to application of appropriate conditions, which the Council has secured in its draft decision notice. However, one comment was received relating to a security barrier, and asked that additional security should be at the developers cost, not residents.

Statutory consultees response

Sport England

20 Sport England objected to the scheme due to the cumulative loss of the existing playing fields. It stated that no replacement provision or enhancement of other sites has been offered or provided.

Environment Agency(EA)

21 The EA has been involved in the design of the flood alleviation scheme and supports the principles and outcomes of the development, including funding, but requested planning conditions to be attached. The Council has secured the suggested conditions in its draft decision notice.

Metropolitan Police

22 The Metropolitan Police has no objection to the scheme, but recommended conditions, which are secured in the draft decision notice.

Thames Water

23 No objection to the proposed development.

Network Rail

24 No objection to the proposed development.

Response to the consultation - conclusion

25 Having considered the responses to public consultation, Enfield Council has proposed various planning conditions and informatives in response to the issues raised. Having had regard to these, GLA officers are satisfied that the statutory and non-statutory responses to the public consultation process carried out by the Council, do not raise any material planning issues of strategic importance that have not already been considered in this report GLA/4839/01.

Legal considerations

26 Under the arrangements set out in Article 5 of the Town and Country Planning (Mayor of London) Order 2008 the Mayor has the power under Article 6 to direct the local planning authority to refuse permission for a planning application referred to him under Article 4 of the Order. In directing refusal, the Mayor must have regard to the matters set out in Article 6(2) of the Order, including the principal purposes of the Greater London Authority, the effect on health and sustainable development, national policies and international obligations, regional planning guidance, and the use of the River Thames. The Mayor may direct refusal if he considers that to grant permission would be contrary to good strategic planning in Greater London. If he decides to direct refusal, the Mayor must set out his reasons, and the local planning authority must issue these with the refusal notice.

Financial considerations

27 Should the Mayor direct refusal, he would be the principal party at any subsequent appeal hearing or public inquiry. Government Planning Practice Guidance emphasises that parties usually pay their own expenses arising from an appeal. Following an inquiry caused by a direction to refuse, costs may be awarded against the Mayor if he has either directed refusal unreasonably; handled a referral from a planning authority unreasonably; or behaved unreasonably during the appeal. A major factor in deciding whether the Mayor has acted unreasonably will be the extent to which he has taken account of established planning policy.

Conclusion

28 Having regard to the details of the application, the matters set out in the committee report, the Council's draft decision notice - the benefits of the proposed development to prevent future flooding in the area, improvements to biodiversity and landscaping of the Park, outweigh the harm that could be caused in the loss of some portion (44%) of the playing fields. The proposal complies with Policies 5.12 and 5.13 of the London Plan and Policies SI.12 and SI.13 of the Mayor's Intend to Publish London Plan, and therefore it is supported.

For further information contact GLA Planning Team:

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